**Amendment of section 143.**

**40.** In section 143 of the Income-tax Act, in sub-section (3),—

(*a*) for the first proviso, the following proviso shall be substituted, namely:—
"**Provided** that in the case of a—
(*a*) research association referred to in clause (21) of section 10;
(*b*) news agency referred to in clause (22B) of section 10;
(*c*) association or institution referred to in clause (23A) of section 10;
(*d*) institution referred to in clause (23B) of section 10,
which is required to furnish the return of income under sub-section (4C) of section 139, no order making an assessment of the total income or loss of such research association, news agency, association or institution, shall be made by the Assessing Officer, without giving effect to the provisions of section 10, unless—
(*i*) the Assessing Officer has intimated the Central Government or the prescribed authority the contravention of the provisions of clause (21) or clause (22B) or clause (23A) or clause (23B), as the case may be, by such research association, news agency, association or institution, where in his view such contravention has taken place; and
(*ii*) the approval granted to such research association or other association or institution has been withdrawn or notification issued in respect of such news agency or association or institution has been rescinded:";

(*b*) in the second proviso, for the words "Provided further", the following shall be substituted, namely:—
"**Provided further** that where the Assessing Officer is satisfied that any fund or institution referred to in sub-clause (*iv*) or trust or institution referred to in sub-clause (*v*) or any university or other educational institution referred to in sub-clause (*vi*) or any hospital or other medical institution referred to in sub-clause (via), of clause (23C) of section 10, or any trust or institution referred to in section 11, has committed any specified violation as defined in *Explanation 2* to the fifteenth proviso to clause (23C) of section 10 or the *Explanation* to sub-section (4) of section 12AB, as the case may be, he shall—
(*a*) send a reference to the Principal Commissioner or Commissioner to withdraw the approval or registration, as the case may be; and
(*b*) no order making an assessment of the total income or loss of such fund or institution or trust or any university or other educational institution or any hospital or other medical institution shall be made by him without giving effect to the order passed by the Principal Commissioner or Commissioner under clause (*ii*) or clause (*iii*) of the fifteenth proviso to clause (23C) of section 10 or clause (*ii*) or clause (*iii*) of sub-section (4) of section 12AB:
Provided also";
(*c*) the third proviso shall be omitted.